

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC

RESPONDENT.

**COMPLAINANT PELOTON INTERACTIVE, INC.’S
SECOND MOTION FOR CONFIDENTIAL TREATMENT**

Complainant Peloton Interactive, Inc. (“Peloton”) moves pursuant to Rules 5(b) and 69 of the Federal Maritime Commission’s Rules of Practice and Procedure and the May 13, 2024 Initial Order in this proceeding (“Initial Order”) for confidential treatment of Exhibit 3 to Flexport International LLC’s (“Flexport’s”) Response to Peloton’s Motion to Compel (“Response”).

On December 13, 2024, Peloton and Flexport entered a Stipulation of Confidentiality (“Confidentiality Agreement”), which provides among other things, that “Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in accordance with 46 CFR §502.5.” See **Exhibit A** at ¶ 5.

On January 14, 2025, Peloton filed its Motion to Compel Flexport to respond to certain Peloton interrogatories and requests for production. On January 21, 2024, Flexport filed its

Response, including multiple documents as exhibits, among them the Exhibit 3 referenced above. Flexport's Exhibit 3 to its Response comprises multiple chains of email correspondence extracted from Peloton's document production. Despite the parties' Confidentiality Agreement, Flexport did not request or designate for confidential treatment certain portions of Exhibit 3. Peloton notes that while the Response is publicly available in the FMC Reading Room, Exhibit 3 is fortunately not currently published on the website. However, the portions of Exhibit 3 that include commercially sensitive and confidential information should have been designated as confidential. Since they were not, Peloton now respectfully requests that these portions of Exhibit 3 be designated as confidential; that the unredacted versions of Exhibit 3 be immediately removed from the public record; and that Flexport be required to file both confidential and public versions of Exhibit 3 consistent with the Initial Order.

Pursuant to Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating "the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii)." 46 C.F.R. § 502.5(b). Here, good cause exists for protection of the identified portions in Exhibit 3 that contain commercially sensitive information related to the business dealings of the parties, including but not limited to rates, charges, and shipment information. Further, Exhibit 3 also includes personally identifiable information ("PII") for a number of Peloton employees, Flexport employees, and third parties. Attached to this motion for confidential treatment is an updated version of Exhibit 3 with the commercially sensitive / PII-related information highlighted. *See Exhibit B.* By publicly filing Exhibit 3 without Peloton's

prior knowledge or permission, Flexport breached the Initial Order and Confidentiality Agreement.¹

Finally, Peloton notes that the practice of not properly designating materials as confidential in their filings has become a pattern for Flexport. On November 7, 2024, Peloton had to file a separate motion for confidential treatment (*see* Dkt. 18) to protect sensitive material in exhibits to Flexport's Answer that should have been shielded from public disclosure. It is Flexport's obligation, not Peloton's, to ensure that it is appropriately seeking confidential treatment of information and documents in its own filings.

Meet and Confer Certification

Pursuant to 46 C.F.R. § 502.71(a), on January 23, 2025, Peloton's counsel informed Flexport's counsel that Exhibit 3 to Flexport's Response contained confidential information, including rates, charges, shipment details, and personally identifiable information (PII). Peloton advised that it intended to file a motion for confidential treatment to protect the sensitive information and requested Flexport's position on the motion. On January 24, 2025, Flexport's counsel inquired about the specific information deemed confidential. Later that day, Peloton's counsel provided a copy of Exhibit 3, highlighting the information it designated as confidential information. Flexport's counsel disagreed with some of Peloton's confidentiality designations but agreed to file a public version of Exhibit 3 with only the PII redacted and subsequently did so. Following Flexport's filing, Peloton requested further corrections to the filing in accordance with

¹ As a general matter, it is also unclear why Flexport included Exhibit 3 in its Response, except to present additional arguments related to its beliefs in the merits of Peloton's Verified Amended Complaint. Exhibit 3 does not respond to or address the issues raised in Peloton's motion to compel, further highlighting its irrelevance.

the Parties' Confidentiality Stipulation and designations noted in Peloton's highlighted copy of Exhibit 3 but received no response.

CONCLUSION

For the foregoing reasons, Peloton respectfully requests (1) that the Presiding Officer grant Peloton's motion for confidential treatment; (2) that the unredacted version of Exhibit 3 to Flexport's Response be removed from the public record and be designated as confidential; and (3) that Flexport be required to file updated confidential and public versions of Exhibit 3 that follow the confidentiality designations detailed in Exhibit B.

Dated: February 5, 2025

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: February 5, 2025

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